REPORTABLE (18)

MEREKI (WARREN PARK) COMMUNITY TRUST
v
CITY OF HARARE

SUPREME COURT OF ZIMBABWE
UCHENA JA, CHATUKUTA JA & MWAYERA JA
HARARE: 8 SEPTEMBER 2025

L. Madhuku, for the appellant

C. Kwaramba, for the respondent

MWAYERA JA:

INTRODUCTION

1. This is an appeal against the judgment of the High Court (the court *a quo*) wherein it dismissed the appellant's claim for specific performance on the basis that there was no valid acceptance of the respondent's offer by the appellant, meaning that there was no valid contract between the parties. At the hearing of the appeal, this Court gave the following order:

   "The appeal be and is hereby dismissed with costs."

2. The Court indicated that the reasons for the decision would be availed in due course. These are they.

FACTUAL BACKGROUND

3. The appellant is a trust founded for the main objective of advancing the welfare and interests of the Warren Park Community, in that high-density suburb. The respondent is a municipality incorporated by virtue of the City of Harare (Private) Act [*Chapter 29:04*]. It is governed by the Urban Councils Act [*Chapter 29:*15].

4. The appellant issued summons in the court *a quo* seeking an order compelling the respondent to transfer to it Stand 5153 of Warren Park Township ("the property'') . The appellant made the following allegations. On 22 June 2016, the respondent made an offer to sell the property to the appellant, which offer was accepted by the appellant on 23 June 2016. The appellant acknowledged that the contract between the parties was not reduced to writing but the conduct of the parties was such that a valid and binding contract came into existence. The purchase price was pegged at ZWG$ 862 500.00 and it was a material term of the contract for the appellant to make a full payment of the purchase price, whereinafter the respondent would transfer title to the appellant. The purchase price was dully paid. However, the respondent failed to process the necessary documents for the transfer of title to the appellant.

5. In response, the respondent disputed that the appellant was offered the property for a purchase price of ZWG $ 862 500.00 but rather USD $ 862 500.00. The respondent also averred that the appellant did not meet the conditions of the offer, as it did not pay the requisite one-third of the purchase price within 30 days of the offer, resulting in the automatic revocation of the offer. In addition, the respondent avowed that there was no basis for a transfer as there was no binding agreement between the parties. The respondent also averred that it had tendered reimbursement of the amounts paid by the appellant.

PROCEEDINGS BEFORE THE COURT *A QUO*

6. Before trial, the parties came up with a statement of agreed facts in terms of r 52 of the High Court Rules, 2021. The agreed facts were as follows:

    1.1. Sometime in July 2016, defendant resolved to dispose of various pieces of land in Harare including Stand 5153 of Warren Park Township. The resolution is Exhibit 1. Amongst other things, the council resolution provided for:

(a) The need for conclusion of written agreements with buyers stating the terms and conditions of disposal: and;
(b) That purchasers had to pay a minimum of 30% of the purchase price upon the signing of the agreement of sale and the remaining 70% balance within the ensuing 30 days.

1.2. A form titled "Offer Form (sales applications)" which is Exhibit 2 was designed which prospective buyers were supposed to complete indicating, *inter alia*, the price they were offering.

1.3. A suitable press advert inviting offers to purchase was put in the press including the Sunday Mail Newspaper on or about 29 May 2016. The advert which is Exhibit 3 hereto amongst other things made it clear that:

(a) The land was being sold on a cash basis, and
(b) Payment of the purchase price was to be made within 30 days.

1.3. A standard acceptance letter which is Exhibit 4 to be sent to all successful offerors was also designed and was used to advise all successful offerors, including plaintiff, on the acceptance of their offers. Amongst other things and consistent with the advert referred to above, this letter advised purchasers to:

(a) Pay a minimum of a third of the offered amount to the City of Harare Estates bank account given therein within seven working days;

(b) That failure to pay a third of the purchase price upon conclusion of the contract would result in an assumption being made that there were no purchases.

1.4. Plaintiff was one of the respondents to the advert mentioned above and on 30 June 2016 submitted an offer form (sales application) offering to buy Stand Number 5153 of Warren Park $ 750 000.00 before Value Added Tax (VAT). The offer form is Exhibit 5.

1.5. In anticipation of payment by plaintiff, and to facilitate the matching of plaintiff's payment with the relevant transaction, an account was created for and in the name of plaintiff.

1.6. Sometime in November 2016, a tax invoice indicating a purchase price of "862 500-00" was sent to plaintiff by defendant. The tax invoice is Exhibit 6.

1.8. In terms of the advert, those whose offers were accepted were supposed to pay the full purchase price within 30 days.

1.9. Plaintiff made various payments to defendant commencing on 30 January 2017, all of which amount to $ 862 500.00. The receipts are Exhibit 7A to Exhibit 7 J.

(ii) **Parties' Contentions**

2.0. Plaintiff contends on these facts that once its offer was accepted an agreement binding on the parties arose and that whatever defects in payments or performance alleged by defendant, constitute possible acts of breach of contract and do not render the agreement non-existent or terminated.

[2] Defendant contended that the plaintiff did not comply with the terms and conditions in para [1.7] above and resulted in "automatic revocation/termination" of the offer. It contends consequently, that no agreement ever came into existence.

(iii) **Issues for determination**

2.2. The parties consequently sought the court to determine the following issues:

(a) Whether there was a valid acceptance of plaintiff's offer by defendant;
(b) Whether the parties entered into a valid agreement for the sale of stand 5153 of Warren Park Township.
(c) If so, whether plaintiff complied with its obligations under that agreement.
(d) If so, whether plaintiff is entitled to specific performance of the agreement as prayed.
(e) The question and scale of costs.

(iv) ***Viva voce* evidence**

2.3. The parties shall lead any additional *viva voce* evidence they deem necessary to the extent same shall not in any way contradict, depart from or alter the contents of para [1.1] to [1.9] above.

(v) **Submissions**

2.4. Subject to the court's directions, the parties agreed to file written submissions on both the agreed facts and *viva voce* evidence on dates to be fixed by the court and to further appear for oral submissions should the court so require." (*sic*)

FINDINGS OF THE COURT *A QUO*

7. At trial, both parties relied on the statement of agreed facts. The respondent also relied on the evidence adduced from one witness, Ms Mutero. After a protracted trial, the court *a quo* held that from a consideration of the evidence of the respondent's witness and the agreed facts, it was clear that there was no acceptance of the appellant's offer. The court *a quo* held that the

appellant adopted a mutually irreconcilable position, wherein, on the one hand, it argued that there was a written acceptance of its offer, and on the other, that the acceptance was verbal. It made a finding that there was no valid acceptance of the respondent's offer by the appellant, hence there was no contract. The appellant's claim was therefore dismissed.

PROCEEDINGS BEFORE THIS COURT

8. Aggrieved by the judgment of the court *a quo*, the appellant noted the present appeal on the following grounds:

GROUNDS OF APPEAL

1. The court *a quo* misdirected itself and erred in law in admitting and relying on the *viva voce* evidence of a witness called by the respondent (the witness being Monica Mutero) in circumstances where such evidence was inadmissible as the matter before it had been brought as a special case under rule 52 of the High Court Rules, 2021 in terms of which additional *viva voce* evidence was impermissible.
2. The court *a quo* misdirected itself and erred in law in not finding that under paragraph 1.4 of the Statement of Agreed Facts, the appellant's offer to purchase the land in question, being stand 5153 of Warren Park Township, Harare had been accepted by the respondent thereby creating a contract between the parties.
3. As an alternative to 2 above, the court *a quo* misdirected itself and erred in law in not finding that in all the circumstances of the case, the only reasonable inference to be drawn from the facts was that the appellant and respondent had a valid contract of purchase and sale of the land in question, being stand 5153 of Warren Park Township, Harare.

RELIEF SOUGHT

1. That the appeal succeeds with costs.
2. That the whole judgment of the court *a quo* is set aside.
3. The matter is remitted to the court *a quo*, before a different judge, for that court to proceed as follows:

   (a) That the first two issues presented by the parties for determination namely paragraphs (a) and (b) of Clause 2.2 of the Statement of Agreed Facts are determined in favour of the appellant with the result that the finding of the court is that the parties entered into a valid contract of purchase and sale in respect of stand 5153 of Warren Park Township, Harare.

   (b) That the court proceeds to determine the remaining issues, namely paragraphs (c), (d) and (e) of the Clause 2.2 of the Statement of Agreed Fact**s.**

9. At the hearing of the appeal, Mr *Madhuku*, counsel for the appellant, submitted that he would abide by the heads of argument filed of record. He submitted that the court *a quo* erred in relying on additional evidence when it was proceeding by way of r 52 of the High Court Rules, 2021. The Court asked counsel whether or not s 152 of the Urban Council's Act did not dispose of the matter, to which counsel responded that it was not an issue before the court *a quo*. The Court also engaged counsel on whether s 152 of the Urban Council's Act could be ignored given the nature of the land. Mr *Madhuku* made the submission that the court *a quo* erred in relying on the evidence adduced by Ms Mutero, when the parties had a statement of agreed facts. He thus argued that the court ought to have relied on the statement of agreed facts and nothing else.

10. The Court pointed counsel to r 52(7) and (9) of the High Court Rules and asked him whether the stated rules did not envisage that the court *a quo* could hear further evidence. Mr *Madhuku* placed reliance on the case of *Kunonga* v *The Church of The Province of Central Africa* SC

25/17, which states that if a matter is before the court in terms of r 52, it can only be determined on the statement of agreement facts and not supplementary evidence. Counsel maintained the stance that the court *a quo* conducted a trial not known in terms of our law. The Court enquired from counsel whether the statement of agreed facts did not state that the parties could lead *viva voce* evidence. In response, counsel submitted that the statement of agreed facts in that aspect was contrary to the law.

11. He argued that on the record, it was not shown how the witness was called. Further, he argued that there was nothing on the record which showed that the court *a quo* was proceeding in terms of r 52. He submitted that r 52 (7) and (9) are departures from r 52, hence the judgment of the court *a quo* ought to have stated that it was departing from the standard r 52, using the said provisions. Counsel concluded by submitting that the conduct of the court *a quo* from the outset showed that it was determining the matter in favour of the respondent.

12. Conversely, Mr *Kwaramba* for the respondent, submitted that the parties agreed to curtail proceedings and agreed on a statement of agreed facts. He submitted that the issue of *viva voce* evidence was not imposed on the appellant in the lower court. He submitted that r 52 permits the court to hear further evidence and that the court has the discretion to do so. Counsel also submitted that the parties conceded to the leading of viva voce evidence, and as long as the concession was not to an illegality, it ought to be taken into consideration.

13. In addition, counsel argued that not every procedural irregularity must lead to the vitiation of proceedings. He submitted that the case is resolvable against the appellant on the basis of the statement of agreed facts which revealed that there was no acceptance of the offer as the appellant did not attach an acceptance letter. Counsel argued that the *Kunonga* case (*supra*) was distinguishable. He submitted that the court *a quo* had the discretion to deal with a case

using the principles of fairness and justice. He argued that the parties agreed to lead oral evidence and subrules 7 and 9 of r 52 gave the legal basis for adducement of further evidence. In reply, Mr *Madhuku* submitted that r 52 does not allow the court *a quo* to depart from the position in the *Kunonga* case, which is binding on the lower court and this Court, unless overturned. He further submitted that it did not matter that the appellant conceded to an irregularity.

ISSUES FOR DETERMINATION

1. Whether or not the court *a quo* erred in accepting and relying on *viva voce* evidence when the case had been brought before it in terms of r 52 of the High Court Rules, 2021.
2. Whether or not there was a valid contract between the parties.

APPLICATION OF THE LAW TO THE FACTS

1. Whether or not the court *a quo* erred in accepting and relying on viva voce evidence when the case had been brought before it in terms of r 52 of the High Court Rules, 2021.

14. The appellant in the first ground of appeal averred that the court *a quo* erred in relying on *viva voce* evidence when there was a statement of agreed facts. Mr *Madhuku* submitted on behalf of the appellant that when a court is proceeding in terms of r 52 of the High Court Rules, 2021, it cannot admit and rely on *viva voce* evidence. It was further submitted by counsel that the court *a quo* erred in admitting and relying on the oral evidence of Monica Mutero, a witness called by the respondent which led to the proceedings *a quo* being incurably defective.
15. *Per contra*, Mr *Kwaramba* submitted that r 52 of the High Court Rules does not proscribe the hearing of *viva voce* evidence in a stated case. Counsel further submitted that there is scope

under r 52 for the court, in deciding the case, to give directions regarding the hearing of other issues necessary for the disposal of the dispute between the parties.

16. The strength of the appellant's argument is based on r 52 of the High Court Rules. Rule 52 provides as follows:

> "**52. Special cases**
> (1) The parties to any civil action or suit may, after summons has been issued, agree upon a written statement of facts or the questions of law arising therein in the form of a special case for the adjudication or opinion of the court.
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> (2) The statement referred to in sub rule (1) shall set out the facts agreed upon, the questions of law in dispute between the parties and their contentions thereon.
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> (3) Every such special case shall be divided into paragraphs numbered consecutively, and shall concisely state such facts and documents as may be necessary to enable the court to decide the questions raised thereby.
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> (4) Every special case shall be typewritten or printed by the plaintiff and signed by the several parties or their counsel and shall be filed by the plaintiff and where the registrar so requests, one or more copies of the special case shall be filed for the use of the court.
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> (5) The special case may be set down for hearing in the manner provided for trial or opposed applications whichever may be more convenient.
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> (6) Upon the argument of such case, the court and the parties shall be at liberty to refer to the whole contents of such documents, and the court shall be at liberty to draw from the facts and documents stated in any such special case any inference, whether of fact or law, which might have been drawn therefrom if proved at a trial.
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> (7) If, in any cause or matter it appears to the court on its own initiative that there is a question of law which it would be convenient to have decided before any evidence is given or any question or issue of fact is tried, the court may make an order accordingly, and may direct such question of law to be raised for the opinion of the court, either by special case or in such other manner as the court may deem expedient, and all such further proceedings as the decision of such question of law may render unnecessary may thereupon be stayed.
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> (8) If a minor or person of unsound mind is a party to such proceedings, the court may, before determining the questions of law in dispute, require proof that the

statements in such special case so far as concerns the minor or person of unsound mind, are true.

(9) When giving its decision upon any question in terms of this Rule, the court may give judgment as may upon such decision be appropriate and may give any direction with regard to the hearing of any other issues in the proceedings which may be necessary for the final disposal thereof.

(10) If the question in dispute is one of law, and the parties are agreed upon the facts, the facts may be admitted and recorded at the trial and the court may give judgment without hearing evidence." (Underlining for emphasis)

17. The above provisions set out the procedure for bringing a special case before the court in civil proceedings. It allows the parties, after summons has been issued, to agree on a written statement of agreed facts or legal questions for the court's decision, without the need for a full trial. It asserts that the statement must clearly outline the facts, legal issues, and each party's position, and must be properly formatted, signed, and filed. The court can then decide the case based on the statement of agreed facts, without hearing witnesses or other evidence, especially if the facts are not in dispute. The judge is also free to draw any reasonable conclusions from the agreed facts and documents. Additionally, even if the parties have not requested it, the court itself can choose to deal with a legal question separately before a full trial, which can save time and resources. If one of the parties is a minor or mentally incapacitated, the court must first confirm that the agreed facts are true before making a decision. In the end, the court can issue a judgment and give further directions to resolve the entire case efficiently.

18. In that light, it is important to explain what a stated case is. A stated case was defined in *Kunonga* v *The Church of The Province of Central Africa* SC 25/17, on p 9, as follows:

"The rules of court of most countries make provision for the reference of a matter as a stated case. But what is a stated case? It is a case that is brought upon the

> agreement of the parties who submit a statement of undisputed facts to the court but who take adversarial positions as to the legal ramifications of the facts, thereby requiring a judge to decide the question of law presented (*Legal dictionary. The free dictionary.com*). Put another way, it is a formal written statement of the facts in a case, which is submitted to the court by the parties, jointly, so that a decision may be rendered without trial. The facts being thus ascertained, it is left for the court to decide the question of law presented. A stated case is also called a special case, an amicable action, a case agreed or a friendly suit (*US Legal, Inc*.)(Underlining for emphasis)

Further, on pages 10-11, this Court proceeds to state that:

> "Once the facts are agreed, the court should proceed to determine the particular question of law that arises and not delve into the correctness or otherwise of the facts. It is bound to take those facts as correctly representing the agreed position and to thereafter determine any issues of law that may arise therefrom. It is not open to the parties to the stated case to seek to re-open the agreed factual position or to contradict such position. Nor can either party seek to ignore existing legal principle or findings of fact made in connection with the same matter by another court. Of course, either party has a remedy at common law, to withdraw any concession made in a stated case owing to *justus error*, fraud, mistake, or any other valid ground.
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> It has become necessary to restate what a stated case is owing to the fact that in some instances, the appellant in this case has made submissions contrary to the stated case brought before the court. The appellant has also ignored in part the decision of this court on which the stated case is predicated. It bears stating that if this happens, a party will be kept strictly to the terms of the agreed facts, as it is on the basis of those facts that the court would have been invited to make a determination on some specific question of law."

19. From the above, it can be interpreted that a stated case is where parties agree on the facts of the matter, the issues for determination and the law applicable. The parties to the stated case cannot contradict the factual position they have provided in the statement of agreed facts. In a stated case, the court is obligated to deal with the issues raised in the statement of agreed facts and not go outside of it.

20. It is important to note that after parties have submitted a statement of agreed facts under r 52 of the High Court Rules, the general legal position is that a special case is meant to be decided

on agreed facts without further evidence. However, r 52(9) gives the court the discretion to make any order or give directions necessary for the final resolution of the matter, which includes allowing oral evidence if needed. Therefore, although a special case typically excludes oral testimony, the court is not strictly barred from admitting it, especially where it is necessary to clarify issues or resolve disputes that may arise despite the agreed facts.

21. *In casu*, the court accepted the evidence as it was not objected to by the appellant. The court *a quo* in its judgment stated that:

> "In the statement of agreed facts the parties agreed to lead viva voce evidence at their election provided that the evidence did not contradict, depart from or alter the facts outlined in paragraphs (1.1) to (1.9) of the agreed facts. Whether or not the evidence of Mutero contradicted the agreed facts is a matter that the parties legal practitioners would have dealt with during the giving of evidence by Mutero. When Mutero gave evidence at no stage did the plaintiff's counsel object to the evidence on any of the grounds alluded to. The court must accept the evidence of Mutero to the extent that she was allowed to lead it. Its relevance and credibility is something different."

22. In that light, the appellant's argument that the court *a quo* erred by admitting and relying on *viva voce* evidence in proceedings governed by r 52 of the High Court Rules is without merit. While it is correct that a stated case is generally determined based on agreed facts without further evidence, r 52(9) clearly provides the court with discretion to give directions necessary for the final disposal of the matter. This includes the power to permit oral evidence where appropriate, provided such evidence does not contradict or alter the agreed facts. Moreover, the parties in this case explicitly agreed to lead viva voce evidence to the extent that it did not contradict paras 1.1 to 1.9 of the agreed facts, and no objection was raised during the giving of such evidence. The appellant, therefore, cannot now challenge the admissibility of evidence that was allowed without protest. The court exercised its discretion properly and within the bounds of r 52. Accordingly, the first ground of appeal lacks any legal basis and must fail.

2. **Whether or not there was a valid contract between the parties**.

23. The second and third grounds of appeal raise one issue for determination. In the second ground of appeal, the appellant averred that the court *a quo* misdirected itself in failing to find that para 1.4 of the statement of agreed facts indicated that there was an offer and acceptance, thereby creating a valid contract between the parties. The appellant submitted that para 1.4 of the statement of agreed facts has a clear meaning that ought to have been given to it.

24. In the third ground of appeal, the appellant averred that the court *a quo* misdirected itself in not finding that, in all the circumstances of the case, the only reasonable inference to be drawn from the facts was that the parties had a valid contract. The appellant submits that, having regard to the agreed facts, the court *a quo* ought to have found that the appellant and respondent had a valid contract of sale of the property.

25. Conversely, and in respect of the second ground of appeal, the respondent submitted that the court *a quo* interpreted para 1.4 of the statement of agreed facts. It submitted that the court made a finding that a sample acceptance letter was sent to all successful offerors. The respondent further submitted that the court *a quo* made a finding that the actual letter of acceptance was not produced before the court and that the evidence adduced by Ms Mutero regarding the acceptance letter was not challenged. It was the respondent's submission that the court was correct in finding that no acceptance was ever communicated to the appellant.

26. In relation to the third ground of appeal, the respondent submitted that, assuming that its offer was accepted, the appellant failed to meet any of the conditions stated in the 'contract'. The respondent also submitted that any purported alienation of municipal land that does not comply with s 152(2) of the Urban Councils Act [*Chapter 29:15*] is null and void.

27. As a creature of statute, the respondent is governed by the Urban Councils Act, making it pertinent to cite the relevant provisions. Section 152(2) provides that:

> "(2) Before selling, exchanging, leasing, donating or otherwise disposing of or permitting the use of any land owned by it the council shall, by notice published in two issues of a newspaper and posted at the office of the council, give notice—
>
> (*a*) of its intention to do so, describing the land concerned and stating the object, terms and conditions of the proposed sale, exchange, lease, donation, disposition or grant of permission of use; and
> (b) that a copy of the proposal is open for inspection during office hours at the office of the council for a period of twenty-one days from the date of the last publication of the notice in a newspaper; and
> (c) that any person who objects to the proposal may lodge his objection with the town clerk within the period of twenty-one days referred to in paragraph (b).
>
> (3) The council shall submit a copy of the notice referred to in subsection (2) to the Minister not later than the date of the first publication of that notice in a newspaper."

28. In *City of Harare v Munzara & Ors* SC 1/23 on p 11, the Court explained the import of the above provision thus:

> "In addition to the above legislative provisions, s 152 (2) of the Urban Councils Act [*Chapter 29:15*] applies to the sale or alienation of municipal land. It provides:
>
> '(2) Before selling, exchanging, leasing, donating or otherwise disposing of or permitting the use of any land owned by it the council shall, by notice published in two issues of a newspaper and posted at the office of the council, give notice-
>
> (a) of its intention to do so, describing the land concerned and stating the object, terms and conditions of the proposed sale, exchange, lease, donation, disposition or grant of permission of use; and
> (b) that a copy of the proposal is open for inspection during office hours at the office of the council for a period of twenty-one days from the date of the last publication of the notice in a newspaper; and
> (c) that any person who objects to the proposal may lodge his objection with the town clerk within the period of twenty-one days referred to in paragraph (b).'

> There is therefore an elaborate process that has to be undertaken by a municipal authority before it may lawfully dispose of its land. It is a process provided for by statute." (The underlining is for emphasis)

The Court further stated that:

> "The appellant is an administrative authority reposed with the responsibility to manage public property including land. When doing so it is regulated by statute and cannot act like a private individual."

Similarly, in *Chinhoyi Municipality* v *Musonza* SC 110/23, on pp 7-8, it was stated that:

> "The appellant is a creature of the Urban Councils Act. Its land sales are strictly controlled by that Act.
>
> Section 152 of the Act sets out the procedure to be followed by the appellant when disposing of land belonging to council. These provisions are mandatory. As long as same are not complied with no valid sale or transfer of council land can occur. Thus, even assuming that the respondent had a valid agreement of sale, such would not prevail in the absence of proof that the provisions of s 152 were complied with. Failure to comply with the mandatory provisions of s 152 renders the agreement null and void."

29. In light of the above, it is clear from s 152 of the Urban Councils Act, that the respondent could only sell municipal land if it complied with all required procedures, including submitting a notice of intention to sell to the Minister. From the record, it is evident that the respondent did not submit a copy of the notice of intention to sell to the Minister. As such, the sale, was invalid.

30. Mr *Madhuku's* argument that this issue was not before the court *a quo* does not assist the appellant since the issue is a point of law. It is common cause that the respondent is a creature of statute, and it is governed by the statute that creates it. As such, for it to enter into a competent legal contract, it has to follow the process espoused in s 152 of the Urban Councils Act. A finding that this process was not followed is a point of law, which can be properly

raised at any time. In *El Elion Investments (Pvt) Ltd* v *Auction City (Pvt) Ltd* SC 29/16, on pp 6-7, this Court aptly stated that:

> "It is accepted that a point of law can be raised at any stage of the process even on appeal. The law on the raising of points law for the first time on appeal is clear and has been articulated in a plethora of cases. In *Muchakata v Netherburn Mine* 1996 (1) 153 (S) at p 157A KORSAH JA said;
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> > 'Provided it is not one which is required by a definitive law to be specially pleaded a point of law, which goes to the root of the matter, may be raised at any time, even for the first time on appeal, if its consideration involves no unfairness to the party against whom it is directed: Morobane v Bateman 1918 460; *Paddock Motors (PTY) Ltd v Igesund* 1976 (3) SA 16 (A) at 23D-G.'
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> In *Muskwe v Nyajina & Ors* SC 17/12 ZIYAMBI JA at p 2 of the cyclostyled judgment said;
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> > 'Undoubtedly a point of law can be raised at any time even though not pleaded. However, this is subject to certain considerations, one of which is that the court has to consider whether raising a point of law at this juncture would cause prejudice to the party against whom it is raised.'"

31. In light of the foregoing, Mr *Madhuku's* argument does not hold water. Even though this issue was not argued in the court *a quo*, it could be properly argued before this Court. It should be noted that this Court brought this issue to the attention of the parties and the parties made submissions relating to the point. In *Joel Simon Silonda (Substituted by Executor Vusumuzi Thomas Silonda)* v *Nkomo* SC 6/22 on p 21 it was remarked that:

> "In our law, a Court is precluded from enforcing an illegal contract, which has not been performed in whole or in part. The rule is of absolute application. It emanates from the *maxim ex turpi causa non oritur actio*. It is based on the principle of public policy that prohibits the recognition and enforcement of illegal contracts that are contrary to law. See *York Estates Ltd v Wareham* 1950 (1) SA 125 at p 128 and *Dube v Khumalo* 1986(2) ZLR 103 (SC) at p 109."

32. Given the above, the courts cannot recognise a contract which was made contrary to the law. Having said that, there was no valid contract between the parties. The court *a quo* therefore

did not err in making a finding that there was no valid contract between the parties albeit for different reasons. As such, the second and third grounds of appeal are devoid of merit.

DISPOSITION

33. In light of the foregoing, the court *a quo* did not err in placing reliance on the oral evidence. The rules provide that the court can direct the leading of further evidence when there is a disparity. Therefore, the court *a quo* cannot be faulted for hearing oral evidence, as this was done in the confines of the law. Further, there was no valid contract between the parties, as the respondent did not comply with s 152 of the Urban Councils Act.

34. It is for these reasons that we dismissed the appeal and issued the order endorsed in para 1 of this judgment.

UCHENA JA : I agree

CHATUKUTA JA : **(LATE)**

Lovemore Madhuku Lawyers, appellant's legal practitioners.

Mbidzo Muchadehama & Makoni, respondent's legal practitioners.